

6.

CASE #	CASE NAME	HEARING NAME
CVME2510811	DEL ROSARIO V. LOENZANA	CMC AND OSC

Tentative Ruling: Continue the CMC and OSC to April 1, 2027. Sanction Cross-Complainants \$500.00, on the OSC for failing to file the POS and/or file a LR 3116 declaration.

Vacate the hearings on the motions to compel on September 14, 15, and 22. The parties are ordered to meet and confer (M&C) in person, by telephone, or via visual conferencing to resolve their discovery disputes. If the parties are unable to reach an agreement, the moving party shall request an Informal Discovery Conference (IDC) by emailing the Court Assistant at DeptM302@riverside.courts.ca.gov, with all parties copied. The moving party shall give notice about how all parties can appear by Zoom.

Three days prior to the IDC, the parties shall file a joint IDC Brief, not exceeding three pages, outlining the unresolved disputes that remain. If, after the IDC, the Court is unable to assist the parties in resolving their dispute, then the court will re-calendar the hearings on the discovery motion and the request for sanctions.

The parties are required to work out their discovery disputes in good faith before seeking court intervention. Plaintiff has extended numerous extensions, therefore, if discovery is not immediately provided, without objections, then court intends to grant full sanctions.

When it comes to trying to resolve discovery disputes, the obligation to meet and confer consists of “more than the mere attempt by the discovery proponent to persuade the objector of the error of his ways ... the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.” (Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1294, emphasis added.) There must be a “serious effort” at negotiation and informal resolution, which “entails something more than bickering” with opposing counsel. Arguing is not the same as informal negotiation. (Townsend v. Superior Court (1988) 61 Cal.App.4th 1431, 1435.)

7.

CASE #	CASE NAME	HEARING NAME
CVME2509106	COBB V. CWI, LLC	CMC AND OSC

Tentative Ruling: Discharge the OSC. A 10-day jury trial is scheduled for June 4, 2027. All parties must strictly comply with Local Rule 3401 and should familiarize themselves with *Reales Investment v. Johnson* (2020) 55 Cal.App.5th 463. Failure to comply with Local Rule 3401 may result in the imposition of evidentiary sanctions. The parties are directed to download, review, and follow the trial binder preparation pamphlet available on the court’s website. All experts shall be scheduled to be deposed no later than 20 days prior to the first day of trial, absent good cause. A Zoom MSC will be set by the Court—once set, the Court will provide notice.